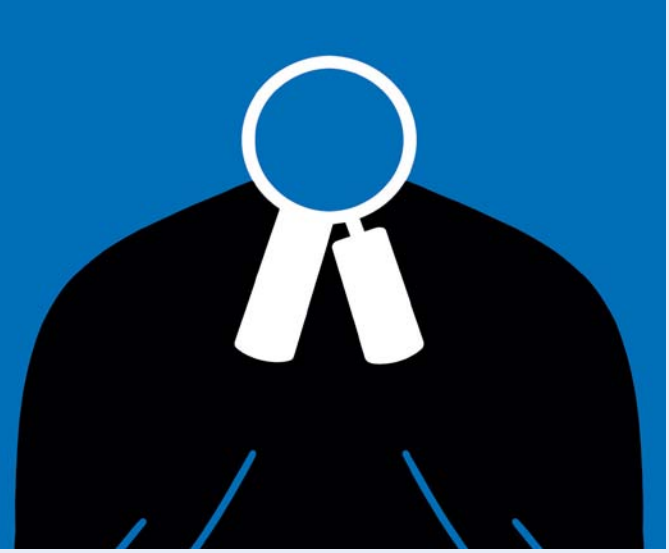


Illustration by SIDDHANT JUMDE

IN AN ADVISORY OPINION issued in 1998, the Supreme Court held that the collegium would consist of the Chief Justice of India and the four seniormost judges of the top court

IN 2014, for judicial appointments, Parliament set up the National Judicial Appointments Commission, comprising the Chief Justice of India, the two seniormost judges of the Supreme Court, the Union law minister and two eminent persons to be selected by a committee consisting of the prime minister and the leader of the opposition in the Lok Sabha. But the Supreme Court struck down the amendment for violating the basic structure of the Constitution, on the ground that the new procedure contains the possibility of political influence, which impedes judicial independence.

In 1981, this system of appointment was challenged in *S.P. Gupta vs Union of India* or the First Judges case. The petitioners in the apex court argued that the word "consultation" in Articles 124 and 217 should be read as "concurrence", and that the judiciary should exercise a veto over judicial appointments. A bench of seven SC judges held that the expression "consultation" cannot be understood as "concurrence". The court held that in the event of a disagreement between the executive and the judiciary, the former's views would prevail.

However, in the Second Judges case (*Advocates on Record Association vs Union of India*) in 1993, a bench of nine SC judges overruled the previous verdict, saying that the 'ultimate power' of appointment vested in the executive was being abused, and that merit was being overlooked in the existing system. The court held that judicial independence was part of the unamendable basic structure of the Constitution, to protect which the judiciary should have 'primacy' over the appointments process. The term 'consultation' with the chief justice was interpreted to mean that he/ she had to concur in the appointment of the judge. The opinion of the chief justice was not his individual opinion, but that of the chief justice in consultation with a collegium of the two seniormost SC judges, and the seniormost HC judge where the appointment was to be made. This judgment introduced the collegium-led appointments system.

In an advisory opinion during the Third Judges case in 1998, a nine-judge SC bench modified the system, saying that for appointment to the apex court, the collegium would comprise the Chief Justice and the four seniormost judges of the court. For HC appointments, the collegium would have the CJI and two seniormost judges. In the 1993 and the 1998 judgments, the court stated that the inter se seniority of judges within their high court and their all-India seniority should be the primary ground for appointment to the apex court. However, other considerations, such as outstanding merit and ensuring regional and other diversity, would be grounds to depart from the seniority norm.

The collegium system is guided by a memorandum of procedure (MoP) set by the government. According to it, for the appointment of judges to the high court, its chief justice has to send the recommendation of the HC collegium six months before the vacancy arises to the chief minister with a copy endorsed to the CJI and Union law minister.

Within six weeks, the chief minister has to send his comments on the recommendation to the law minister. If not received within the time-frame, it is presumed the CM has nothing to add. The law minister then forwards the recommendations of the high court chief justice, the state government, the Intelligence Bureau (IB) and his own opinion to the CJI. The CJI then has to get the views of the SC judge(s) who are from the high court where appointments are to be made. The SC collegium then sends the recommendation back to the law minister within four weeks. The law minister may return the names for reconsideration to the CJI with specific reasons or put up the file to the prime minister, preferably within three weeks. The PM finally advises the President for the appointment, but no timeline is stipulated for it.

Worried over the increasing vacancies in the high courts, the SC, in 2021, prescribed a fresh timeline for HC appointments. It fixed 4-6 weeks for the IB to submit its report. The law ministry has to forward recommendations to the CJI within 8-12 weeks of receipt of inputs from the state government and the IB. The government of India has to make the appointment within 3-4 weeks of the recommendation of the SC collegium, if not sent back. Though this is what the process looks like on paper, none of the players follows any time-frame. Most legal observers concur that building consensus on names is time-consuming. The delay first starts at the HC collegiums; the timeline for recommending names six months prior to vacancies appearing is rarely followed.

Arghya Sengupta, research director at the Vidhi Centre for Legal Policy, believes judges cannot be blamed for this. "Judges cannot be expected to keep track of who is retiring when. It's an administrative function that is not professionally managed in high courts and the Supreme Court. The solution lies in professionalising the judicial administration," he says.

The delay also happens due to executive inaction. Former SC judge Justice Jasti Chelameswar recounts how the Andhra